Checking AI-assisted citations before filing

A one-page checklist for paralegals in Australian courts. Rules as at 25 October 2026.

> In Damien Charlotin's database, 55 of the 108 Australian decisions with coded errors (50.9%) involved misrepresented authorities or false quotes, not only cases that do not exist. Checking that a case exists is not enough.

1. **Find the rules.** Identify the court's instrument in the matrix. Several courts bind self-represented litigants and experts as well as lawyers (WA SC PD 9.21 para 1) (Vic SC Gen 25 para 2.2).
2. **Open every case.** Open each authority from an authoritative source. Check that the party names, year, court and number match. Then read the cited paragraph and confirm it supports the proposition (Vic SC Gen 25 para 7.4).
3. **Check quotes and pinpoints.** Compare every quotation word for word with the source, and check that the pinpoint points to the passage relied on (Vic SC Gen 25 para 7.4).
4. **Check legislation.** Confirm that each Act and section exists and says what is claimed, using an authorised legislation website (Vic SC Gen 25 para 7.4).
5. **Do not check AI with AI.** Asking an AI tool whether a case exists is not verification (NSW SC Gen 23 para 17) (Vic SC Gen 25 para 7.4).
6. **A 'found' result is not verification.** A tool returning "found" means a record with this citation and these party names exists. It is not verification under Vic SC Gen 25 para 7 or NSW SC Gen 23 paras 16–17. Open the source and read the cited passage.
7. **Evidence is different.** AI must not generate the content of affidavits or witness statements in NSW, and they must say so (NSW SC Gen 23 paras 10, 13); elsewhere they must reflect the witness's own words (Vic SC Gen 25 para 6.11) (WA SC PD 9.21 para 11).
8. **Protect confidential material.** Do not put suppressed, subpoenaed or confidential material into public AI tools (NSW SC Gen 23 para 9A) (Vic SC Gen 25 para 6.8) (WA SC PD 9.21 para 10).
9. **Record who checked.** In NSW the author verifies the references in the body of the submissions (NSW SC Gen 23 para 16). In Queensland the responsible practitioner is named, not just the firm (Qld SC PD 5/2025 paras 5, 6). Be ready to show which parts used AI and how they were checked (Vic SC Gen 25 para 7.6), and disclose AI use where directed or appropriate (WA SC PD 9.21 para 12).

Not legal advice. Paragraph references are to the official instruments in the AI in Australian Courts rules matrix; check the current version before relying on them. The statistic is computed by script from Damien Charlotin's coding of each decision, as recorded in the tracker (AI Hallucination Cases database, CC BY 4.0). Luc Taya, Economics (Honours) graduate, University of Western Australia. CC BY 4.0.